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In divorce cases this functionary, after some weak attempts  168 at reconciliation, has always to give effect to the expressed wish of the husband. The wife also can press for a divorce, and is not, therefore, devoid of all rights; but in this case, besides losing her maintenance, she also, as a rule, loses the jointure that would otherwise fall to be paid to her by the husband as stipulated in the marriage contract. The divorce cannot be judicially forced from the husband, he must say the words "Thou art repudiated," and if he will not do so he has to give his wife a *bêt shér`ai*, that is, a separate dwelling and maintenance; it is a kind of divorce *a mensa et thoro*. During the continuance of this relationship the woman cannot marry again, though of course the husband can. But during the proceedings, with which a multitude of laymen, both summoned and unsummoned, mix themselves up, the husband often becomes morally pliant, or is induced by cunning to utter the words, whereupon the case at once comes to an end. The phrase "thou art repudiated" is fatally momentous, the mere utterance of it, even in the heat of a quarrel, results in separation, and "thrice repudiated" even in complete divorce (see below). If a person writes these words down and in joke asks a Mohammedan to read them, he absolutely refuses to read them aloud. The asseveration "by repudiation," or stronger "by threefold repudiation," is equivalent to a solemn oath. The greater number of disputes in cases of matrimonial separation arise on account of the children, whom neither the father nor mother would like to part with. They, together with the matter of expense, are what unites most closely the bonds of marriage, otherwise so loose. Up to a certain age, which differs among the various so-called sects of Mohammedans—among the Hanafites, for instance, being the seventh year, among the Shafaites the second—the child remains with its mother, while the father pays for its support, and in return has the right of seeing it as often as he wishes. Henceforth the father, if he has satisfactorily supported it hitherto, can take the child altogether to himself, and he usually does so if it is a boy.

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